

25AVCV00409 25AVCV00409

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00409 Hearing Date: June 30, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

RAFAEL TRUJILLO and CAROLYN A. TRUJILLO,

Plaintiffs,

v.

GENERAL MOTORS, LLC, and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00409

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: June 30, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a case alleging breach of statutory obligations and breach of warranty pursuant to the Song-Beverly Consumer Warranty Act.

On March 27, 2025, Plaintiffs Rafael Trujillo and Carolyn A. Trujillo (Plaintiffs) filed a complaint against Defendant General Motors, LLC (Defendant).

On June 26, 2025, Defendant filed a demurrer to Plaintiffs' complaint.

On August 6, 2025, Plaintiffs filed their first amended complaint (FAC) asserting causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, and (5) fraudulent inducement – concealment. Specifically, Plaintiffs allege on or about October 1, 2024, they entered into a warranty contract with Defendant regarding a 2024 Chevrolet Colorado (Vehicle). (Compl., ¶ 6.) Plaintiffs claim after delivery of the Vehicle, defects and nonconformities to warranty manifested themselves within the applicable express warranty period which substantially impair the use, value, or safety of the Vehicle and rendering it worthless or of de minimis value. (Compl., ¶¶ 11-13.) Plaintiffs further allege that Defendant had an affirmative duty to offer to repurchase or replace the Vehicle and failed to do either. (Compl., ¶¶ 14-15.)

On August 15, 2025, Defendant filed a notice of withdrawal of demurrer to Plaintiffs' complaint, and the demurrer was ordered withdrawn on August 19, 2025.

On September 3, 2025, Defendant filed its demurrer to Plaintiffs' FAC. The demurrer was overruled on December 2, 2025.

On December 15, 2025, Defendant filed its answer to the FAC.

On February 19, 2026, Defendant filed its motion to compel compliance pursuant to Code of Civil Procedure section 871.26 and a request for sanctions.

On June 16, 2026, Plaintiffs filed their opposition.

On June 23, 2026, Defendant filed its reply.

II. Legal Standard

Standard for Motion to Compel Compliance – Code of Civil Procedure section 871.26, subdivision (c) provides that within 120 days after the filing of the answer or other responsive pleading, all parties to a civil action for restitution or replacement of a motor vehicle have the right to conduct depositions of (1) the plaintiff, and (2) the person most qualified to testify on the defendant's behalf. Code of Civil Procedure section 871.26, subdivision (j) requires the Court to sanction a plaintiff's attorney \$1,500.00 for failure to comply with the deposition provisions unless the plaintiff's attorney shows good cause.

III. Discussion

Application – Defendant filed a responsive pleading, the demurrer to Plaintiffs' complaint, on June 26, 2025. Thus, the Court finds the deadline to complete Plaintiffs' deposition pursuant to California Code of Civil Procedure, section 871.26, subdivision (c)(1) was October 24, 2025. (See GM's Motion for Compliance, at 7:22.) The Court also notes that Defendant directed meet and confer efforts to Plaintiffs' counsel directly, that these efforts are not bound by electronic service requirements, and that Defendant's failure to direct said emails to the official electronic service address provided by Plaintiffs' counsel is not relevant.

On June 26, 2025, Defendant served an initial meet and confer letter and notices of deposition for Plaintiffs to appear for deposition on August 22, 2025. (Stark Decl., ¶ 5, Ex. B-1, B-2.) On August 19, 2025, Plaintiffs' counsel objected to the notice of deposition, stating, "Plaintiff and/or Plaintiff's counsel is unavailable." (Stark Decl., ¶ 6, Ex. C-1..)

On December 2, 2025, Defense counsel sent a follow-up email to Plaintiff's counsel requesting dates of Plaintiffs' availability to reschedule the deposition. (Stark Decl., ¶ 7, Ex. D.) On December 5, 2025, Plaintiffs' counsel proposed January 12, 2026 as a deposition date for Plaintiff Rafael Trujillo. (Ibid.) Defense counsel indicated on December 9, 2025 that Defendant was unavailable and requested additional dates. (Ibid.)

On December 22, 2025, Defendant included the present case in a list of over 100 cases in which depositions had not been scheduled and requested dates of Plaintiff availability. (Stark Decl., Ex. E.) On December 23, 2025, Plaintiffs' counsel offered alternative dates for February 17, 18, or 19, 2026. (Stark Decl., Ex. E.) On January 6, 2026, Defense counsel emailed Plaintiffs' counsel indicating that Plaintiff's counsel now was stating that the previously offered needed to be confirmed with their clients. (Ex. F.0 Plaintiffs' counsel responded on January 8, 2026 stating counsel was confirming the availability of Plaintiffs. (Stark Decl., ¶ 9, Ex. F.) GM sent another follow up on January 23, 2026, that apparently went without a response. (Stark Decl., ¶ 10, Ex. G.)

The Court notes that Plaintiffs do not explain why they waited just until three days before the August 22, 2025 deposition date – almost two months after the notice for deposition was served -- to raise an objection to the deposition date. This unexplained delay, and then 11th-hour objection, smacks of game playing. This is reinforced by the wording of Plaintiff's objection that "Plaintiff and/or Plaintiff's counsel" was unavailable for deposition. An objection based on actual unavailability would say with more precision who was or was not available. And gameplaying or not, Defendant had a statutory right to depose Plaintiff within 120 days of its responsive pleading. Defendant promptly sent a deposition notice. Plaintiff ultimately objected, but provided no alternate dates within the 120 days. It is not the noticing party's obligation to chase down a party after a duly noticed deposition subpoena is served.[1]

Apparently, the parties have now agreed to a deposition date for Plaintiffs.. The Court does not know if those depositions proceeded.

Regardless, based on the current record before the Court, an order to compel is warranted absent proof that Plaintiffs have sat for their deposition. And even if they have, sanctions are warranted and mandatory under CCP 871.26(i). The depositions were noticed well within the 120-day window, and Plaintiffs' counsel offered no alternate dates after serving the last-minute objection.

IV. Conclusion

Defendant General Motors, LLC's Motion to Compel Compliance and Request for Sanctions is GRANTED as to the Motion to Compel Compliance. Furthermore, Defendant's request for sanctions to be imposed on Plaintiffs' counsel in the amount of \$1500 is GRANTED under CCP Section 871.26(j).

[1] Defendant General Motors is on notice that the same reasoning applies to a deposition notice a plaintiff serves of a defendant's person most qualified deponent.